



Center for International Mediators  
and Arbitrators  
England & Wales

# Legal Framework for Domestic and International Arbitration

Law, Practice and Procedure

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MOD 5 ESTIMATED DURATION: 75-90 MINUTES



# Center for International Mediators and Arbitrators

**England & Wales**

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# The Legal Framework of Domestic and International Arbitration

Comparative Focus: Ghana, England & Wales, Kenya, India and Bangladesh

## Five Jurisdictions



### Ghana

ADR Act 2010 (Act 798)



### England & Wales

Arbitration Act 1996 + 2025



### Kenya

Arbitration Act 1995



### India

Arbitration & Conciliation Act 1996



### Bangladesh

Arbitration Act 2001

## Five International Instruments



### New York Convention 1958

Recognition & enforcement of awards



### UNCITRAL Model Law 1985/2006

Harmonisation of national laws



### UNCITRAL Arbitration Rules

Procedural conduct of proceedings



### ICSID Convention 1965

Investor-State arbitration



### Panama Convention 1975

Inter-American commercial arbitration

# Learning Objectives

This lecture equips students and legal practitioners with the analytical tools to navigate the multi-layered legal framework governing domestic and international arbitration across five comparative jurisdictions.

1

## Legal Architecture

Explain the layered legal framework governing both domestic and international arbitration — from party consent through to enforcement.

2

## Four Governing Laws

Distinguish the **law of the contract**, **law of the arbitration agreement**, **lex arbitri**, and **arbitral procedural rules** — each answers a different legal question.

3

## National Legislation

Identify and compare the principal arbitration statutes of Ghana, England & Wales, Kenya, India, and Bangladesh.

4

## International Instruments

Explain the five major international arbitration instruments and distinguish their character — treaty, model law, or procedural rules.

5

## Courts & Tribunals

Understand the complementary relationship between arbitral tribunals and national courts at each stage of the arbitral process.

6

## Practical Application

Apply the full framework to a cross-border arbitration scenario — identifying which law governs which issue, at which stage, and in which jurisdiction.

# Arbitration Does Not Operate in a Legal Vacuum

Arbitration begins with **party consent** — but consent alone does not make the process legally effective. A single arbitration may simultaneously be affected by multiple overlapping legal frameworks. The practitioner's first task is to identify *which* law governs *which* issue.

❏ **The first lesson:** Do not ask "What law governs the arbitration?" Ask: "*Which law governs which issue?*"

## Arbitration Agreement

Foundation of tribunal jurisdiction

## Law of the Arbitration Agreement

May differ from the main contract law

## Lex Arbitri

Arbitration law of the juridical seat

## Substantive Law

Governing contractual rights and obligations

## Institutional / Ad Hoc Rules

ICC, LCIA, UNCITRAL, SIAC, HKIAC

## Mandatory National Law

Cannot be displaced by party agreement

## International Conventions

New York Convention, ICSID, Panama Convention

## Law of the Enforcement State

Where assets are located

# The Five Layers of Arbitration Law

Every arbitration sits within a structured hierarchy of legal authority. Understanding each layer — and recognising that they may point to different national laws — is the foundation of sound arbitration practice.



📌 **Key principle:** Governing law of contract ≠ law of arbitration agreement ≠ lex arbitri. Each layer answers a different legal question.

# Seat vs. Venue — A Fundamental Distinction

## The Juridical Seat

The **seat** is the juridical home of the arbitration. It determines:

- The applicable **lex arbitri**
- Which national courts have **supervisory jurisdiction**
- The grounds on which an award may be **set aside**
- The primary supervisory court's **nationality**

The seat changes only by **valid party agreement** or **court order** — not by the physical movement of hearings.

## The Hearing Venue

The **venue** is the physical or virtual location where hearings take place. It has **no necessary legal significance**. An arbitration seated in London may hold hearings in Accra, Dubai, or Singapore without altering its juridical seat.

## Practical Illustration

A contract with a **Nairobi seat**, **ICC Rules**, a **London hearing venue**, and **Ghanaian substantive law** is a *Kenyan* arbitration — not an English one. The hearing location does not determine the juridical seat.

### Seat

Legal/juridical home →  
determines lex arbitri

### Venue

Physical location → no legal  
significance

# Domestic Arbitration: Five Comparative Legal Systems

Each of the five jurisdictions examined in this course illustrates a distinct approach to the balance between party autonomy and judicial supervision. The table below provides a high-level comparative overview before the detailed examination of each national framework.

| Jurisdiction    | Principal Legislation                       | Key Characteristic                                                                                               |
|-----------------|---------------------------------------------|------------------------------------------------------------------------------------------------------------------|
| Ghana           | ADR Act 2010 (Act 798)                      | Arbitration, mediation and customary arbitration — a uniquely comprehensive framework reflecting legal pluralism |
| England & Wales | Arbitration Act 1996 + Arbitration Act 2025 | Strong party autonomy and deliberately limited court intervention; leading global arbitral seat                  |
| Kenya           | Arbitration Act 1995                        | Strong UNCITRAL Model Law influence; Nairobi is an increasingly important African seat                           |
| India           | Arbitration and Conciliation Act 1996       | Covers domestic, international commercial arbitration, foreign-award enforcement, and conciliation               |
| Bangladesh      | Arbitration Act 2001                        | Modern international commercial arbitration framework with significant international alignment                   |



# Ghana — Alternative Dispute Resolution Act 2010 (Act 798)

Ghana's ADR Act 2010 is a uniquely comprehensive statute — it covers arbitration, mediation, *and* customary arbitration within a single legislative framework, reflecting Ghana's legal pluralism and the coexistence of common law, statutory law, and customary law traditions.

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## Arbitration Agreement

Written agreements are recognised; electronic communications may satisfy writing requirements. Party autonomy is respected within the limits set by the Act.

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## Arbitrability

Certain matters are excluded from arbitration: disputes involving national or public interest, environmental matters, constitutional interpretation, and any matter declared non-arbitrable by law. **Key principle:** Party autonomy ends where mandatory law declares the subject matter non-arbitrable.

## Separability

The arbitration clause is treated as legally distinct from the principal contract. An invalid contract does not automatically invalidate the arbitration agreement.

## Competence-Competence

The tribunal may determine questions concerning its own jurisdiction (Kompetenz-Kompetenz). This does not eliminate subsequent court review but permits the arbitral process to proceed without immediate judicial interruption.

## Role of Courts

Courts perform a *supportive and supervisory* role — the relationship is Tribunal + limited judicial support, not adversarial. Courts intervene only as permitted by the Act.

# England & Wales — Arbitration Act 1996 as Amended by the Arbitration Act 2025

## The Three Pillars

### Fairness

Each party must be given a reasonable opportunity to present their case before an impartial tribunal.

### Party Autonomy

Parties have maximum freedom to design their dispute-resolution process — seat, rules, tribunal composition, procedure.

### Limited Court Intervention

Courts act only where the legislation expressly permits — arbitration is not subject to general supervisory review.

## The Arbitration Act 2025 — Key Reforms

The 2025 Act represents the most significant reform of English arbitration law in nearly three decades. It addresses several areas of practical importance:

- **Law of the arbitration agreement:** Express choice governs; absent express choice, the law of the seat generally applies — choosing English law for the main contract is *not* the same as choosing it for the arbitration agreement
- **Arbitrator disclosure:** Enhanced mandatory disclosure obligations
- **Summary disposal:** Tribunals may summarily dismiss unmeritorious claims or defences
- **Jurisdictional challenges:** Revised and clarified procedures
- **Court support powers:** Enhanced powers to support the arbitral process

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## Global Significance

London remains one of the world's leading arbitral seats. English arbitration law is widely studied, frequently chosen by international parties, and sets the comparative benchmark for this course.

# Kenya, India & Bangladesh — Three Comparative Frameworks

## Kenya — Arbitration Act 1995

Governs both domestic and international arbitration with strong **UNCITRAL Model Law** influence. Covers: arbitration agreements, stay of proceedings, appointment and challenge of arbitrators, competence-competence, interim measures, arbitral procedure, awards, setting aside, recognition and enforcement.

Nairobi is an increasingly significant African arbitral seat; the Nairobi Centre for International Arbitration (NCIA) provides institutional support. Kenya illustrates how a developing jurisdiction can adopt internationally harmonised arbitration law while maintaining national judicial oversight.

## India — Arbitration & Conciliation Act 1996

**Structure:** Part I (Arbitration) | Part II (Enforcement of Foreign Awards) | Part III (Conciliation) | Part IV (Supplementary provisions). The Part I / Part II distinction is pedagogically critical — domestic arbitration law and foreign-award enforcement operate under different regimes.

India provides a rich comparative study of the tension between party autonomy and judicial supervision. Successive legislative amendments have progressively reduced court intervention, reflecting a policy shift toward pro-arbitration judicial culture.

## Bangladesh — Arbitration Act 2001

Addresses both domestic and international commercial arbitration, incorporating internationally recognised principles including competence-competence, separability, arbitrability, interim measures, awards, and enforcement. Positions Bangladesh within the mainstream of modern arbitration law.

Alongside India, Bangladesh illustrates South Asian engagement with international arbitration norms. Enforcement provisions are particularly relevant given Bangladesh's growing role in international trade and infrastructure investment.

# The Five Major International Arbitration Instruments

International arbitration operates beyond domestic statutes. Five major instruments and frameworks shape the international legal landscape — they are not all treaties, and their functions are entirely distinct. Each instrument operates at a different level and serves a different purpose.

| Instrument                   | Legal Character      | Principal Purpose                                                                      |
|------------------------------|----------------------|----------------------------------------------------------------------------------------|
| New York Convention 1958     | International treaty | Recognition and enforcement of foreign arbitral awards in 170+ contracting States      |
| UNCITRAL Model Law 1985/2006 | Model legislation    | Harmonisation of national arbitration law — a template for States, not itself a treaty |
| UNCITRAL Arbitration Rules   | Procedural rules     | Conduct of individual arbitration proceedings — framework for parties and tribunals    |
| ICSID Convention 1965        | International treaty | Investor-State arbitration — disputes between foreign investors and host States        |
| Panama Convention 1975       | Regional treaty      | Inter-American commercial arbitration and enforcement of awards in the Americas        |


 These five instruments operate simultaneously with national law — a single arbitration may be affected by treaty obligations, model law-inspired national legislation, and chosen procedural rules at the same time.

# The New York Convention 1958

## The Single Most Important Instrument

The New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards transforms arbitration from a private contractual mechanism into a **globally effective enforcement system**.

170+

### Contracting States

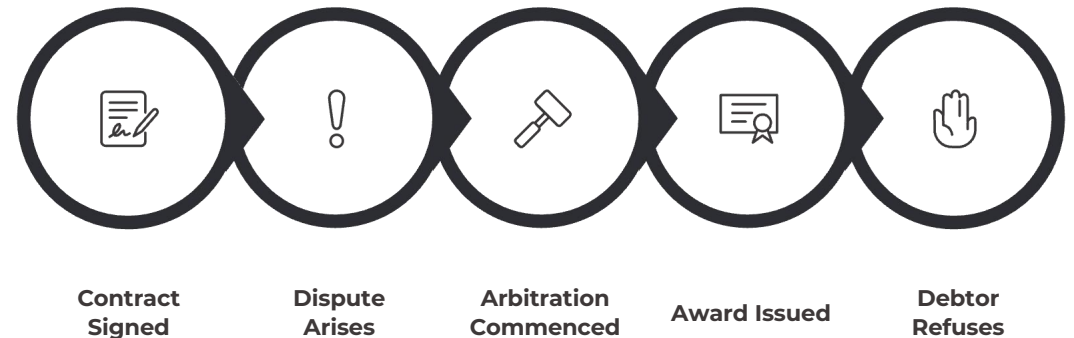
Near-universal reach — virtually every significant trading nation is a party

An award obtained in London can be enforced against assets in **Accra, Nairobi, Mumbai or Dhaka** — provided the relevant State is a contracting party.

## What the Convention Does

- **Arbitration agreements:** Contracting States give effect to qualifying written agreements to arbitrate — courts must refer parties to arbitration where a valid agreement exists
- **Arbitral awards:** Contracting States recognise and enforce qualifying foreign and non-domestic awards
- **Limited grounds for refusal:** Public policy, lack of valid agreement, procedural irregularity, excess of jurisdiction — the grounds are exhaustive, not open-ended

## The Enforcement Chain



# UNCITRAL Model Law & Arbitration Rules — A Critical Distinction

## UNCITRAL Model Law (1985, amended 2006)

A legislative model for **States** — not itself a treaty; carries no binding force until adopted into national law. Provides a comprehensive template covering the entire arbitral lifecycle:

- Agreement to arbitrate
- Constitution of the tribunal
- Jurisdiction and competence-competence
- Interim measures
- Arbitral proceedings and procedure
- Making of the award
- Setting aside
- Recognition and enforcement

## UNCITRAL Arbitration Rules

A procedural framework for **parties and tribunals** — governs the conduct of individual arbitrations. Covers tribunal constitution, pleadings, evidence, hearings, interim measures, applicable law, and awards. Particularly important in **ad hoc international arbitration** where no institution administers proceedings.

## Harmonisation Effect

Model Law adoption creates substantial commonality between national arbitration statutes. Kenya, India, Bangladesh and many others reflect its structural influence — enabling practitioners to move between jurisdictions with a recognisable framework.

## Jurisdictions in This Course

### Kenya 1995

Strong Model Law influence

### India 1996

Model Law-influenced structure

### Bangladesh 2001

Significant Model Law alignment



**Remember:** Model Law = legislative framework for States. UNCITRAL Rules = procedural framework for parties. These are entirely different instruments serving entirely different functions.

# ICSID Convention 1965 & Panama Convention 1975

## ICSID Convention — Investor-State Arbitration

The ICSID Convention creates a **specialised framework** for disputes between a *foreign investor* and a *host State* concerning qualifying investments. Administered by the International Centre for Settlement of Investment Disputes (World Bank Group).

### Distinctive Features of ICSID

- **Self-contained enforcement regime:** Awards are enforceable as final judgments of domestic courts in contracting States — no separate enforcement action is required beyond conversion
- **No domestic court setting aside:** Annulment of ICSID awards is internal to the ICSID system — domestic courts of the seat have no jurisdiction to set aside
- **Public international law dimension:** The host State's sovereign conduct is directly in issue — this is absent from ordinary commercial arbitration

## Panama Convention 1975

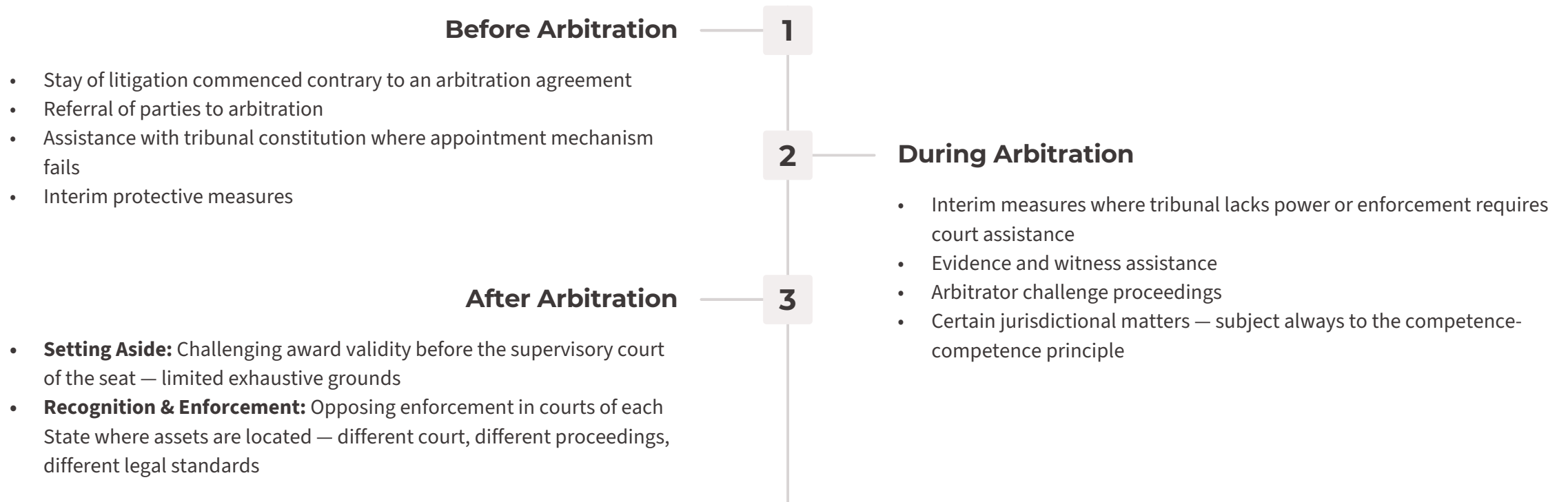
The Inter-American Convention on International Commercial Arbitration is a **regional treaty** governing commercial arbitration and enforcement of awards among contracting States in the Americas. It demonstrates that international arbitration may simultaneously be subject to global, regional, and national legal frameworks.

### Framework Comparison

| Feature          | ICSID                    | Panama Convention        |
|------------------|--------------------------|--------------------------|
| Scope            | Investor-State           | Commercial (inter-party) |
| Geographic reach | Global                   | Americas (regional)      |
| Enforcement      | Self-contained regime    | Contracting State courts |
| Setting aside    | Internal ICSID annulment | Domestic courts of seat  |

# Courts, Tribunals & the Limits of Intervention

**Key question:** If parties choose private arbitration, why do they still need national courts? Because arbitration and national judicial systems are **complementary** — not adversarial. Courts become relevant at three distinct stages of the arbitral process.



📌 **Critical distinction:** Setting aside belongs to the seat's supervisory court. Enforcement proceedings belong to the courts of each State where assets are located. These are legally separate processes with distinct procedural and substantive rules.



# The AfriAsia Infrastructure Arbitration — Case Study

## The Scenario

**Akosombo Engineering Ltd** (Ghana) contracts with **Bharat Infrastructure Ltd** (India) for a USD 60 million infrastructure project in Kenya.

## The Arbitration Clause

**Rules:** UNCITRAL Arbitration Rules

**Seat:** London, England

**Substantive law:** Ghanaian law

## The Dispute

Bharat Infrastructure alleges **misrepresentation** and claims that the underlying contract — and therefore the arbitration clause — is **invalid**.

## Three Jurisdictions in Play

### Ghana

Substantive law jurisdiction

### England

Seat — lex arbitri

### Kenya / India / Bangladesh

Potential enforcement States

## Analytical Questions & Answers

### Q1 — Substantive law?

Ghanaian law — parties' express choice governs contractual rights and obligations.

### Q2 — Lex arbitri?

English arbitration law — the seat is London; the Arbitration Act 1996 (as amended by the 2025 Act) applies.

### Q3 — Procedural rules?

UNCITRAL Arbitration Rules operate alongside mandatory provisions of English law.

### Q4 — Does contract invalidity void the arbitration clause?

Not necessarily. **Separability** treats the arbitration agreement as legally distinct from the principal contract.

### Q5 — Who determines jurisdiction?

The tribunal, in the first instance, under the **competence-competence** (Kompetenz-Kompetenz) doctrine.

### Q6 — Setting aside?

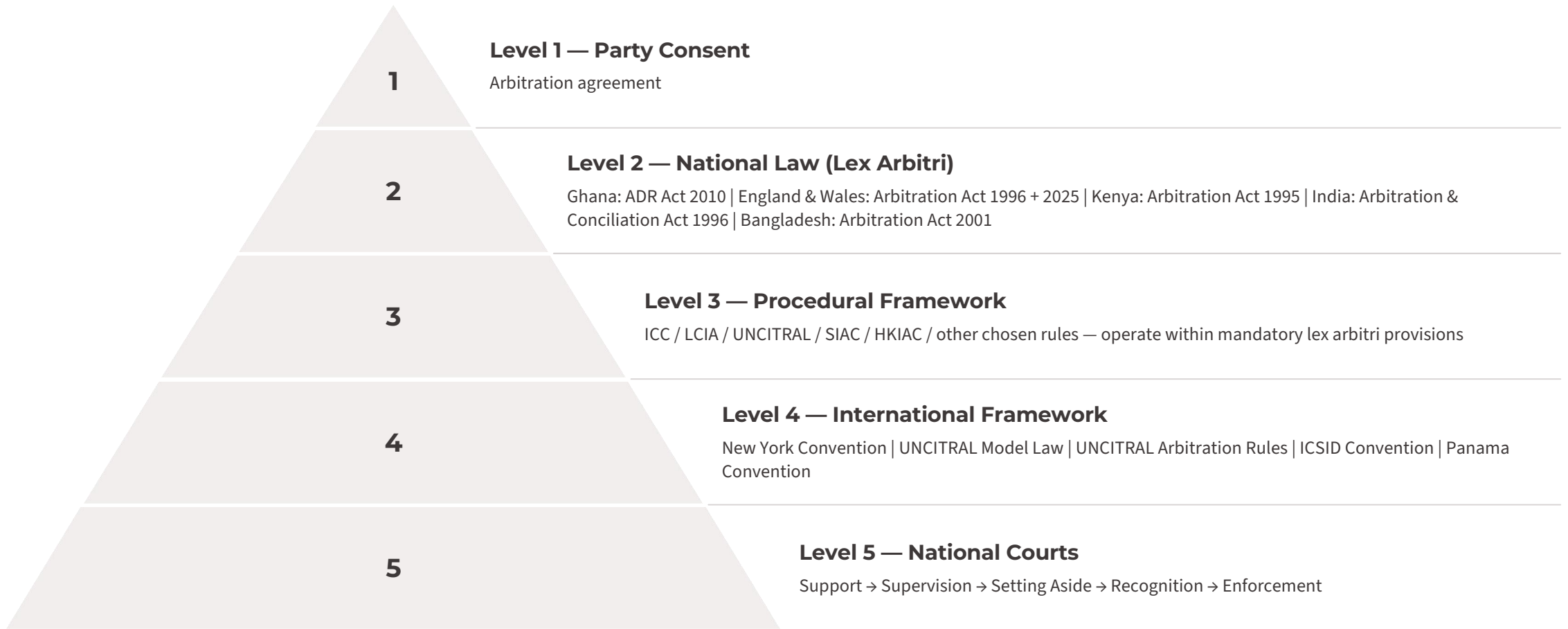
English courts exercise supervisory jurisdiction as the courts of the seat.

### Q7–8 — Enforcement?

Potentially in India, Kenya, and Bangladesh — each jurisdiction's domestic law and treaty obligations (New York Convention) apply.

# The Complete Arbitration Legal Map

Every arbitration sits within five distinct levels of legal authority. The map below integrates national legislation, procedural rules, international instruments, and judicial supervision into a single coherent framework.



Each level answers a different question. Mastery of arbitration law requires the ability to identify which level governs which issue, at which stage, and in which jurisdiction.

# Ten Principles to Remember

## 1 Consent

Arbitration ordinarily begins with an agreement to arbitrate — jurisdiction is founded on consent, not compulsion.

## 2 Arbitrability

Not every dispute parties wish to arbitrate is legally capable of arbitration — mandatory law may reserve certain matters for national courts.

## 3 Separability

The arbitration agreement is legally separable from the underlying contract — invalidity of the main contract does not automatically void the arbitration clause.

## 4 Competence-Competence

The tribunal generally rules on its own jurisdiction in the first instance — courts may review, but ordinarily not in advance of the tribunal's determination.

## 5 Party Autonomy

Parties have considerable freedom to design their dispute-resolution process — seat, rules, procedure, substantive law, tribunal composition.

# Ten Principles to Remember — Continued

## 1 **Seat**

The seat establishes the juridical home of the arbitration — it is a legal concept, not a physical location. It determines the *lex arbitri* and supervisory court.

## 2 **Lex Arbitri**

The arbitration law of the seat provides the national legal framework governing the process — mandatory provisions cannot be displaced by party agreement or institutional rules.

## 3 **Limited Court Intervention**

Modern arbitration law seeks judicial support without unnecessary interference — courts act in support of, not in opposition to, the arbitral process.

## 4 **Finality**

An award is not ordinarily subject to a full appeal on the merits — finality is essential to the efficiency and attractiveness of arbitration as a dispute-resolution mechanism.

## 5 **Enforcement**

An award's practical value depends entirely on its recognition and enforceability against the losing party's assets — the New York Convention provides the critical international architecture for this purpose.

# Final Classroom Exercise

## The Arbitration Clause

"Any dispute shall be resolved by three arbitrators under ICC Rules. The contract shall be governed by Ghanaian law. The seat shall be Nairobi, Kenya. Hearings may take place in London. The resulting award may be enforced in any court of competent jurisdiction."

## The Decisive Question

*"If the hearing takes place entirely in London, is this an English arbitration?"*

# No.

The agreed juridical seat remains **Nairobi** unless validly changed by agreement or court order. The physical location of hearings has no effect on the juridical seat.

## Applying the Framework

### Substantive law

Ghanaian law — parties' express choice governs contractual rights and obligations

### Lex arbitri

Kenyan arbitration law (Arbitration Act 1995) — the agreed seat is Nairobi, Kenya

### Procedural rules

ICC Rules — institutional rules chosen by the parties, operating within mandatory Kenyan law provisions

### Venue

London — hearing location only; no legal significance for jurisdiction or lex arbitri

### Enforcement

Potentially wherever qualifying assets are located, subject to applicable national law and international conventions including the New York Convention

📄 This single clause unites **seat, venue, substantive law, procedural rules and enforcement jurisdiction** in one example — the complete framework in practice.

# Quick Reference — Legislation & Instruments at a Glance

A consolidated reference summary of all principal legislation and international instruments covered in this course.

## National Arbitration Legislation

| Jurisdiction    | Principal Act                               |
|-----------------|---------------------------------------------|
| Ghana           | ADR Act 2010 (Act 798)                      |
| England & Wales | Arbitration Act 1996 + Arbitration Act 2025 |
| Kenya           | Arbitration Act 1995                        |
| India           | Arbitration and Conciliation Act 1996       |
| Bangladesh      | Arbitration Act 2001                        |

## International Instruments

| Instrument                   | Character                           |
|------------------------------|-------------------------------------|
| New York Convention 1958     | International treaty — 170+ States  |
| UNCITRAL Model Law 1985/2006 | Model legislation for States        |
| UNCITRAL Arbitration Rules   | Procedural rules for parties        |
| ICSID Convention 1965        | Treaty — Investor-State arbitration |
| Panama Convention 1975       | Regional treaty — Americas          |

## Key Doctrines

|                                                                        |                                                                              |
|------------------------------------------------------------------------|------------------------------------------------------------------------------|
| <b>Separability</b><br><br>Arbitration agreement ≠ underlying contract | <b>Kompetenz-Kompetenz</b><br><br>Tribunal determines own jurisdiction first |
| <b>Lex Arbitri</b><br><br>Law of the juridical seat governs process    |                                                                              |

## Seat vs. Venue — Never Confuse

|                                                                                                  |                                                                                                        |
|--------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|
| <b>Seat = Juridical Home</b><br><br>Determines lex arbitri and supervisory court. Legal concept. | <b>Venue = Physical Location</b><br><br>Where hearings happen. No legal significance for jurisdiction. |
|--------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|

# Conclusion — The Essential Question

International arbitration is a sophisticated hybrid legal system that draws simultaneously from contract law, national arbitration statutes, international treaty law, and institutional procedural rules. It is neither purely private nor purely public — it occupies a unique legal space.

|                                          |                                                     |
|------------------------------------------|-----------------------------------------------------|
| <b>Born</b>                              | from party consent                                  |
| <b>Protected</b>                         | by separability                                     |
| <b>Empowered</b>                         | by competence-competence                            |
| <b>Anchored</b>                          | to the law of the seat                              |
| <b>Conducted</b>                         | under agreed procedural rules                       |
| <b>Supported &amp; supervised</b>        | by national courts                                  |
| <b>Given international effectiveness</b> | through instruments such as the New York Convention |

## The Essential Question for the Modern Practitioner

The question for the modern arbitration practitioner is therefore never merely:

*"What law applies?"*

It is:

**"What law applies, to which issue, at which stage, and in which jurisdiction?"**

Once that question can be answered confidently — by identifying the correct layer of the legal framework, the appropriate national statute, the governing international instrument, and the competent court — the legal architecture of both domestic and international arbitration becomes considerably clearer.

The five jurisdictions studied in this course — **Ghana, England & Wales, Kenya, India and Bangladesh** — each illustrate a distinct facet of that architecture. Together, they provide a comparative foundation for sophisticated arbitration practice across domestic and international contexts.



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